

		Thus, the motion is GRANTED. Plaintiff is ordered to appear for deposition on a mutually agreed-upon date within 30 days. <i>Defendants to give notice.</i>
105	Doe vs. Doe 1, 25-01495743	Defendant Nancy Williams moves for a protective order staying all merits discovery pending adjudication of defendant's Demurrer to plaintiff John WA Doe's First Amended Complaint (FAC) and permitting only narrowly tailored discovery regarding statute of limitations issues. Defendant argues that a protective order staying any discovery not related to the statute of limitations on plaintiff's claims should be stayed pending resolution of the pleadings because allowing discovery into sensitive and private issues when plaintiff's claims may be time-barred would expose her to unwarranted annoyance, embarrassment, oppression, undue burden, and undue expense. Defendant argues that it is highly likely that plaintiff discovered the link between his claimed injuries and the alleged abuse years ago when he began therapy in 2000, such that his claims are likely time-barred. Defendant cites no authority in support of the request for a stay pending resolution of a demurrer. Indeed, unlike the anti-SLAPP statute, which imposes a stay on discovery after a special motion to strike is filed, the demurrer statutes impose no such stay. (See Code Civ. Proc., §§ 425.16(g), 430.10, et seq.) Further, a plaintiff is entitled to reasonable discovery even if a demurrer to his or her pleading has been sustained with leave to amend. (<i>See Budget Finance Plan v. Superior Court</i> (1973) 34 Cal.App.3d 794, 796-798.) It follows that a plaintiff must be entitled to conduct discovery, within the time limits set forth in Code of Civil Procedure sections 2025.210, 2030.020, and 2031.020, after a demurrer has been filed and before it has been heard. Moreover, defendant has not supported any claim of unwarranted annoyance, embarrassment, oppression, undue burden, or expense. While defendant's counsel asserts

		that the written discovery propounded by plaintiff seeks information regarding topics such as separation, romantic relationships, and conversations about sexual abuse, defendant does not argue that these topics are irrelevant to plaintiff's claims or that the discovery was served for some improper purpose such as to cause annoyance or embarrassment without any relation to the claims raised. Thus, while the written discovery may cause some annoyance or embarrassment, defendant has failed to show that such annoyance or embarrassment would be unwarranted. Further, defendant presents no evidence regarding undue burden or expense. Defendant's Motion rests upon the assertion that plaintiff likely discovered his injuries before the time alleged in the FAC because he received therapy treatment beginning in 2000 and therefore had "ample opportunity" to discovery any alleged causal connection many years earlier. The Court is not inclined to stay discovery for reasons based purely on defendant's speculation. In light of the above, the Motion for Protective Order is DENIED. Defendants' Demurrer to Complaint filed on November 10, 2025 is taken OFF CALENDAR as MOOT, in light of plaintiff's filing of the FAC. The Demurrer to First Amended Complaint filed on February 18, 2026 remains set for September 10, 2026. <i>Moving party to give notice.</i>
106	Hernandez vs. State of California, 23-01355122	Cross-Defendant, Orange County Transportation Authority ("OCTA"), moves for an order sustaining the demurrer, without leave to amend, to the Cross-Complaint of Del Cerro Mobile Estates ("Del Cerro") filed on July 22, 2024, and each of the five causes of action therein for failure to plead facts to support the cause of action and for uncertainty, and dismissing the action as to OCTA. At issue is Del Cerro's first cause of action for total or comparative equitable indemnity, second cause of action for contribution, third cause of action for declaratory relief, fourth cause of action for express indemnity, and fifth cause of action for comparative fault.